ROYAL COMMISSION

INTO THE CIRCUMSTANCES CONNECTED WITH THE

LANDING OF ARMS AT HOWTH

ON

JULY 26th, 1914.

REPORT OF COMMISSION

Presented to both Houses of Parliament by Command of His Majesty.

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ROYAL COMMISSION.

GEORGE *R.I.*

GEORGE THE FIFTH by the Grace of God, of the United Kingdom of Great Britain and Ireland, and of the British Dominions beyond the Seas, King, Defender of the Faith, to Our Right trusty and well-beloved Counsellors:—THOMAS, BARON SHAW, one of Our Lords of Appeal in Ordinary; THOMAS FRANCIS MOLONY, one of the Judges of the King's Bench Division of Our High Court of Justice in Ireland; and WILLIAM DRENNAN ANDREWS, late one of the Judges of the said High Court of Justice in Ireland, Greeting:

WHEREAS we have deemed it expedient that a Commission should forthwith issue to enquire into and report upon the events connected with and ensuing upon the recent landing of arms at Howth, including the circumstances in which the Military were requisitioned to assist the civil power in the City of Dublin, and the origin and character of the disturbances which occurred.

Now, know ye, that We, reposing great trust and confidence in your knowledge and ability, have authorised and appointed, and do by these Presents, authorise and appoint you the said Thomas, Baron Shaw (Chairman); Thomas Francis Molony, and William Drennan Andrews to be our Commissioners for the purposes of the said Inquiry.

And for the better effecting the purposes of this Our Commission we do by these presents give and grant unto you full power to call before you such persons as you shall judge likely to afford you any information upon the subject of this Our Commission, and also to call for, have access to, and examine all such books, documents, registers, and records as may afford you the fullest information on the subject, and to enquire of and concerning the premises by all other lawful ways and means whatsoever.

And We do by these Presents will and ordain that this Our Commission shall continue in full force and virtue, and that you, Our said Commissioners, may from time to time proceed in the execution thereof, and of every matter and thing therein contained, although the same be not continued from time to time by adjournment.

And We do further ordain that you have liberty to report your proceedings under this Our Commission from time to time if you shall judge it expedient so to do.

And our further will and pleasure is that you do, with as little delay as possible report to US, under your hands and seals, your opinion upon the matters herein submitted for your consideration.

Given at Our Court at *Saint James*, the fifth day of August, One Thousand Nine Hundred and Fourteen, in the fifth year of Our Reign.

By His Majesty's Command,

R. McKENNA.

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REPORT.

MAY IT PLEASE YOUR MAJESTY,

1. In accordance with your Majesty's Command signified by your Royal Commission of the 5th day of August, 1914, we have conducted an Inquiry into "the events connected with and ensuing upon the recent landing of arms at Howth, including the circumstances in which the Military were requisitioned to assist the Civil Power in the City of Dublin, and the origin and character of the disturbances which occurred."

2. On Thursday, the 6th August, we met in Dublin to arrange the methods of procedure. At our request information as to our proceedings was conveyed to the representatives of the various parties who had appeared before an Inquest conducted in Dublin in regard to the deaths of three persons in the recent disturbances; and these representatives, including the Solicitor-General on behalf of the Government and Counsel on behalf of the Dublin Corporation, were good enough to attend.

3. We resolved that the proceedings of the Commission should be conducted in public; that it should proceed if possible *de die in diem*; that we should offer no objection to the attendance of Counsel or Solicitors for any parties considered to be interested or involved in the events under enquiry—with the right of examination and cross-examination to all concerned.

4. The parties being thus convened, and our procedure having been intimated, the first sitting for the examination of witnesses was fixed for Friday morning, the 7th August, at 10.30, at the Four Courts, in the City of Dublin. The Inquiry was then opened, and Your Majesty's Commission was read in open Court. Counsel appeared (1) for the Corporation; (2) for the Military Authorities; (3) for Mr. Harrel, Assistant Commissioner of Police; (4) for the Executive Committee of the Irish Volunteers; (5) for the next-of-kin of the three persons killed in Bachelor's Walk; (6) for persons wounded in Bachelor's Walk; and (7) for the Crown. The proceedings lasted for four days, concluding on Tuesday, the 11th August. In all thirty witnesses were examined.

5. Various documents were produced in the case. We called for and obtained the communications passing between General Cuthbert and the Military Authorities by way of report on the circumstances which had occurred, and the action taken. It became necessary at one stage of the proceedings to ask for the text of the Patent to the Lord Lieutenant of Ireland, and a copy of that was also furnished. There were also handed to us various Military Regulations affecting the conduct of the troops, and in particular the Manual entitled—"Orders for the Guidance of the Troops for affording aid to the Civil Power in Ireland." This Manual does not appear in any material particular to vary from the King's Regulations, or, in our judgment, from the position either under law or Statute of the matter in hand. The compend however, is convenient, and, so far as we have noted, is accurate.

6. The events and conduct which formed the subject of the Inquiry may be grouped conveniently into two series of occurrences: and it will conduce to clearness to deal with these separately. The first of these covers what occurred upon the road from Howth to Dublin, and particularly what happened about a part of that road near Clontarf. In these events the Military, the Irish Volunteers, and the Dublin Metropolitan Police met. The second portion of the Inquiry has reference to the events which occurred in Bachelor's Walk, Dublin. By this time the Irish Volunteers and the Dublin Metropolitan Police had disappeared from the scene, and the actors were (1) the troops then on their march back to the Royal Barracks; and (2) a Dublin crowd, including persons from the outskirts of the city.

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7. On the first head of the Inquiry it is important to record as follows :— On or about 12.30 on the afternoon of Sunday, the 26th July, a yacht entered the harbour of Howth, about 8½ miles from Dublin, and was met by a body of about 1,000 Irish Volunteers. They took possession of the landing place, and unloaded from the yacht a quantity of arms and ammunition. Each man possessed himself of a rifle. Some other rifles were conveyed away along with some ammunition by motor cars and wagons. A few policemen were in the vicinity. They were prevented by the Volunteers from getting through to the pier head, and in a short time the Volunteers to the number of about 800 proceeded to march towards Dublin. The County Inspector of the Royal Irish Constabulary who, with the police, had been at or about the pier, found that his force was unable to prevent the distribution of arms or the landing, both of which in fact had been completed before he could interpose. He, however, communicated by telephone with the "G" Division of the Dublin Metropolitan Police at Exchauge Court, an attempt to communicate with the Castle by telephone having failed. In this message he gave information as to what had occurred. The message was dispatched about a few minutes past one. He also states that he endeavoured to get into communication with the Customs Officials and failed.

8. An Irish Volunteer force had been to the knowledge of the authorities constituted in Dublin some time before these events. It had paraded the streets, and its existence and parades were known to the authorities. It appears to have been composed of respectable citizens, and all of its operations had been conducted without disorder. On the Sunday in question it marched from Howth in good order, and without any interruption, till it reached Raheny, about 3½ miles from Dublin. The Volunteers there halted to rest. They then proceeded as far as the foot of the Howth Road, where they found themselves confronted by a body of police and military, who had assembled at that point. The circumstances under which this had occurred will now be mentioned.

9. Mr. William Vesey Harrel, the Assistant Commissioner of the Dublin Metropolitan Police, at 1.40 p.m. received at his residence in Monkstown, a telephone message to the effect that rifles were being landed at Howth by a body of Irish Volunteers, and that the few police were powerless. Mr. Harrel gave telephonic instructions that the Royal Irish Constabulary Depot and the Military Authorities should be informed. He further ordered a force of Dublin Metropolitan Police to proceed by tramway cars to Howth. Shortly afterwards he telephoned to Sir James Dougherty, who was then at his (the Under-Secretary's) Lodge in the Phœnix Park. He informed him of the landing of the rifles, and of the orders sent to the Dublin Metropolitan Police, but he did not inform him of any communication having been made to the military. Sir James Dougherty received this message, and replied that he would at once proceed to the Castle. Mr. Harrel is not able to recall this fact, and the telephone seems to have become indistinct. Sir James Dougherty further asked Mr. Harrel to communicate with the officers of Coastguards at Kingstown, and he testifies that Mr. Harrel said that he had done so. It is the fact that Mr. Harrel did wire to the police at Kingstown to let the Coastguards know what had occurred. Up to this stage accordingly what had been done was that a force of Dublin Metropolitan Police had been sent to meet the Volunteers, and that the Military had not been called out.

10. Mr. Harrel went by motor car from his residence to Dublin, and it appears to the Commissioners to be clear that he had from the first resolved to invoke the aid of the military in the operations which he contemplated. Having ascertained that General Cuthbert, the Brigadier-General of the Infantry Brigade in Dublin, was at the Kildare Street Club, he went to meet him there at about 2.40 p.m. Meanwhile Sir James Dougherty had arrived by motor car at the Castle, and as the result of his enquiries for Mr. Harrel he rang up the Kildare Street Club, requesting to speak to him on the telephone. The message was delivered to Mr. Harrel, who did not comply with the request. A message, however, by the telephone attendant was given to Sir James Dougherty stating that Mr. Harrel had left the Club. Mr. Harrel and General Cuthbert at once proceeded by motor car to the Castle. While in his office there at 2.45 a message from Sir James Dougherty was conveyed to him by Superintendent Lowe desiring his attendance. This instruction was not complied with. Mr. Harrel says that he attempted to get into telephonic communication with the Under-Secretary, but that the telephone was not working. He did not go from his office to the Under-Secretary's Office, which was about two minutes' walk distant, nor did he take any steps to inform Sir James Dougherty that he had arrived at the Castle. His evidence was to the effect that he considered he had sent the Dublin Police on a

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somewhat perilous duty, and that he ought to follow them at once, and assume responsibility.

11. As the result of the discussion between Mr. Harrel and General Cuthbert, the latter gave instructions for the dispatch from Dublin of 100 men of the King's Own Scottish Borderers, under Captain Cohden, to a point where the Howth Road meets the sea front at Clontarf, and there was subsequently dispatched about sixty men of the same regiment, under Major Coke. Mr. Harrel left the Castle after telling Superintendent Lowe "to let Sir James Dougherty know." No information direct or indirect was conveyed to Sir James as to the employment of the Military. Mr. Harrel, after a visit to Store Street Police Station, proceeded to Raheny, where he communicated by telephone with General Cuthbert—through the Dublin Police Head Quarters—telling him that the Volunteers were then passing through. Shortly afterwards—about 4 o'clock—Mr. Harrel was informed by the Sergeant at Clontarf Police Station that there had been a call for him from the Castle. He did not, however, communicate with the Castle, but proceeded to the foot of Howth Road. It is fairly clear that Mr. Harrel up to this point was proceeding upon his own authority, having failed to comply with the request for attendance on the Under-Secretary, or to inform him or any other executive authority that Military were in point of fact being employed.

12. The result of the measures taken by Mr. Harrel and General Cuthbert was that on arrival at the slope which leads down to the foot of Howth Road the Volunteers found their way barred by police and military, drawn up about 150 yards away. The soldiers were the detachment of 100 above mentioned. The Volunteers wheeled to the right, and proceeded by a cross road to the Malahide Road. Mr. Harrel, who was then on the spot, decided to head off the Volunteers. A force of fifty Scottish Borderers was accordingly drawn up across the Malahide Road, with a body of about seventy policemen some distance in front of them. Mr. Harrel then stepped in front and some discussion took place between him and one or two of the leaders of the Volunteers. This was followed by an order by Mr. Harrel to disarm the Volunteers. About nineteen rifles were seized by the police, and also a number of wooden clubs or batons which the Volunteers were carrying. The soldiers took an active part while the struggle was going on, and in the disarmament some bayonet wounds were inflicted upon the Volunteers by them. The Volunteers on their part used clubbed rifles. Meanwhile, those of them in the rear dispersed, and in a few moments the road in front of the police and troops was practically clear. Shortly afterwards about two revolver shots were fired, not by the Volunteers, but by some bystanders unknown, and two of the soldiers received injuries.

13. Mr. Harrel, before leaving Malahide Road, met Sir Neville Chamberlain, the Inspector-General of the Royal Irish Constabulary, and was informed that a force of eighty armed Royal Irish Constabulary were at Amiens Street Station, Dublin. Mr. Harrel, however, was satisfied that the affair was over, and very properly said that these men were not required. The detachment of 100 Scottish Borderers, under Captain Cohden, afterwards set off to return to their Barracks in Dublin, and near Fairview about two miles from the city, they were joined by the sixty Scottish Borderers already mentioned, and under the command of Major Coke. The police were not in company with the troops during the march back to Dublin. They proceeded by a different route. We do not blame anyone for this, but it was, as it turned out, unfortunate. For the presence of a small force of police in the rear of the troops would, in our opinion, have prevented the development of the subsequent fracas between them and the crowd, and they could have at any time dispersed it with ease. Before leaving this part of the narrative we note that Captain Cohden, when actually on the spot, and seeing what was the exact nature of the duties in which the Military were asked to assist, was clearly of opinion that it would have been inadvisable to order his troops to fire upon the Volunteers. His opinion was that the seizure of the contraband rifles would not have justified the taking of life or the inflicting of serious injury upon the Volunteers.

The Clontarf portion of the narrative thus closes.

14. But before making any observation upon the situation or responsibility of parties with regard to it, we deem it advisable to complete the narrative. It may be taken as correct that practically from the time of leaving Clontarf until they passed into the streets of Dublin, and throughout those streets—particularly in Talbot Street, Earl Street, and Sackville Street—the soldiers were followed by a crowd, not of very large dimensions, but of insulting demeanour, language, and behaviour. There was some throwing of stones

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and other missiles. In Dublin itself the news of the intervention of the Military had probably been accompanied with exaggeration and falsehood, and the feeling of many persons became inflamed against the troops. This continued along Bachelor's Walk, into which they had turned from Sackville Street at O'Connell Bridge. By this time Major Haig, who had heard of the disturbances, had joined the force, and being Senior Officer took command. The crowd was occasionally kept in check by the action of the rear guard turning and making feints with fixed bayonets; upon which occasions the crowd dispersed, gathering again in a little time, and still continuing its course of unjustifiable and mischievous misconduct. Upon the other hand the Commissioners do not doubt that the soldiers through great provocation got out of temper and partly out of hand. Sometimes they would pursue the crowd for some distance, chase people into shops, and in one case a soldier drove a bayonet through a shop door. We do not think that the officers could have failed to observe this. We commend the action of Major Coke who by way of precaution repeatedly changed the rear guard by bringing back men from the front whose temper had not been roused. A particularly unfortunate incident of the situation was that Major Haig—from his arrival and until the occurrence of the firing upon the crowd by a large body of men—was not aware that the rifles of 100 of these men were loaded.

15. At about the corner of Liffey Street that officer, being of opinion that the conduct of the crowd was past endurance, told off about thirty men, who turned and lined across the road with fixed bayonets, four or five men kneeling. To five or six of the men Major Haig spoke hurriedly, asking each if he were loaded, and to be ready to fire if he gave the order. We are not satisfied upon the evidence that there was any particular excess of violence by the crowd at this point although the throwing of stones and other missiles was continuing. A landaulette passed quietly through troops and crowd without any injury. Some witnesses say there was no more than the throwing of banana skins, others that the stone-throwing was severe. We think it proved that one soldier in a tussle with civilians was knocked down. Upon the whole our opinion was that the fracas was just of such a kind and dimensions as a small force of police would have quickly settled. We are of opinion that no occasion had actually arisen for using loaded firearms. These were the circumstances in which Major Haig lined up his men, and instructed them as mentioned.

16. That officer stated in evidence that, first, his intention was to warn the crowd, and, secondly, in the event of the threatening and stone-throwing by the crowd continuing, he would have asked that those men so spoken to should shoot two particular ringleaders to be pointed out by himself. He plainly disapproved in his evidence of the action and notion of an order given to troops in general to fire indiscriminately upon a crowd. This, however, was what occurred. We are satisfied that neither Major Haig, nor any of his fellow officers did give an order to fire. But not only did firing take place without an order, but it was indiscriminate firing. Twenty-one men discharged their rifles at the crowd. Twenty-nine shots were fired. Three people were killed; at least thirty-eight people were injured, and fifteen of these so seriously as to be detained in hospital. It is a feature also of the transaction that one of the dead and some of the injured appeared to have had upon their bodies not only bullet but bayonet wounds. The dead were:—Mrs. Mary Duffy, aged 50; Patrick Quinn, aged 46; and James Brennan, aged 18. A list of the wounded taken from the books of Jervis Street Hospital, together with their ages and the nature of their wounds is printed in the Minutes of Evidence. The firing, in short, was at large, without distinction of age or sex, and was at short range. We are glad to think that the fatal results were so few.

17. With regard to Major Haig's position,—his object of addressing the crowd was not attained. He went in front of his men, and raised his hand; and this act appears to have been misinterpreted by at least one of the soldiers as equivalent to an order to fire. Some of the soldiers think that they heard an order although not from Major Haig. Others concluded that there must have been an order when one shot was fired, and so they also fired. The men, in our opinion, showed a lack of self-control and of discipline, and we cannot but think that their excitement and annoyance under the provocation they were subjected to, may have been productive in their minds of the misapprehension as to an order having been given. As it was, Major Haig's lifting of his hand was followed not by the discharge of the rifles of the men whom he had selected, but by the discharge of the rifles of twenty-one men, with regard to at least sixteen of whom he was unaware of the fact that they were in possession of loaded weapons.

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18. Before leaving the narrative of events it may be desirable for us to deal with the action of two high State officials in Ireland whose conduct with reference thereto has, we understand, been subjected to some adverse criticism. These are Sir James Dougherty, Under-Secretary for Ireland, and the Lord Chancellor of Ireland.

19. On the day in question the Chief Secretary being absent from Ireland, the Under-Secretary, subject to the orders of the Lord Lieutenant, was the chief Executive Officer in the country, and was the person to whom naturally an appeal would be made upon the question of a demand by the civil power for the intervention of the military authorities. Sir James was in residence at the Under-Secretary's Lodge, about three miles from Dublin Castle. About 2 o'clock he received the telephone message from Mr. Harrel. already mentioned. In answer he instructed Mr. Harrel to communicate with the Deputy Inspector-General (Mr. O'Connell), and with the officers of Coastguards at Kingstown, and he was informed that this had already been done. He said that he would at once go down to the Castle, but this message Mr. Harrel does not recollect receiving, and as mentioned the telepbone became indistinct. No question or suggestion was made about military intervention. Sir James drove by motor car, without any avoidable delay to the Castle, sent for the Deputy-Inspector-General of the Royal Irish Constabulary (Mr. O'Connell), and for Mr. Harrel. Mr. O'Connell at once attended. but Mr. Harrel did not. Mr. O'Connell explained that he had been informed that the body of Volunteers had by that time—say, 2.35—already left Howth, being in possession of their rifles, and were on their way to Dublin. It at once occurred to Sir James that " a legal question would arise under the altered circumstances," and he set about procuring the highest available legal advice.

20. Neither the Attorney-General nor Solicitor-General were in the City, or could be communicated with. It occurred to him, however, to consult the Lord Chancellor of Ireland, and that learned judge after giving through the telephone his views, which were adverse to any attempt to seize arms, or to interfere with the men on the march to Dublin, was good enough to proceed personally from bis residence at Dundrum by motor car to the Castle, where he arrived at 3.15. Both officials, being anxious in mind, and Mr. Harrel not having arrived, they themselves proceeded about four o'clock to the Dublin Metropolitan Police Office, where they were informed by Sir John Ross that there was information that two soldiers had been shot. This was the first intimation that either of them had had that soldiers had ever been employed. They could get no definite information as to where Mr. Harrel was to be found. Thereupon they at once returned. and framed a minute in the following terms :—

> " As regards the steps which you have taken on your own responsibility to deal with the arms landed at Howth this morning, His Excellency is advised that forcible disarmament of the men now marching into Dublin with these arms should not be attempted ; but the names of the men carrying the arms should be taken, and watch should be kept to ascertain the destination of the arms illegally imported."

21. This Sir James addressed to the Assistant Commissioner. It was sent at once to his office. opened by Sir John Ross the Chief Commissioner, and is understood to have been dispatched by him by messenger on a bicycle to Mr. Harrel. Mr. Harrel says it was delivered to him at Amiens Street Railway Station about 5.45. The various efforts made by Sir James Dougherty to obtain the attendance of and an interview with Mr. Harrel have been already detailed. They all failed. We feel bound to put upon record our opinion that throughout these events we cannot find that the conduct of Sir James Dougherty was in any respect blameworthy. On the contrary we regret that his opinion was not obtained and acted upon. Had it been, then in our judgment the illegalities and casualties of the afternoon would have been avoided.

22. Recognising as we do the delicacy of some of the legal problems which the events raised, we commend the desire of the Under-Secretary for the guidance of the Law Officers, and the prompt and ready response made in their absence by the Lord Chancellor of Ireland. His Lordship completely confirms the Under-Secretary as to the information that the military had been called out having been obtained for the first time as stated, and as to the minute having been promptly framed and forwarded to Mr. Harrel. The suggestion that this minute had its origin in any desire to save any Castle official from responsibility, or had any *arrière pensée* of a sinister character, appears to us to be quite groundless. As

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to the contents of the minute itself there seems much in good sense to recommend the course which it prescribed. We say this, apart from the questions of illegality to which we shall afterwards refer.

23. In closing this part of the narrative it appears to us that we ought to say that the evidence discloses no case of chronic irritation, but upon the contrary indicates the prevalence of cordial good feeling between, the population of Dublin and the soldiers quartered in that city. We note the action and practice of the Under-Secretary and the other Authorities as thus expressed by Sir James Dougherty in a passage of his evidence to which we desire to direct attention :—

> "My opinion on the subject of calling out the military to aid the police in street rows is pretty well known, I think. We have had a good many labour disputes in the City of Dublin, and I have incurred some odium because I set my face against employing the military unless the case was one of overwhelming necessity. In taking that position I had the sympathy and support of high military authorities—the present Commander-in-Chief of the Forces in Ireland, and his predecessor—General Lyttleton."

On this head of the Inquiry we record our view that the policy thus described by the Under-Secretary not only appears to be commendable and proper, but to be also in our opinion, in accordance with sound law. And we venture to express the hope that after the irritation caused by the events under review has subsided, the relations of good feeling and good-will between the population and the military in the City of Dublin may be resumed.

24. We shall now venture to state our opinion as to the law applicable to the events of which the above record has been made. As from our statement it will quickly appear that this law was seriously misapprehended, and that from this misapprehension grave consequences ensued, we think it right to say that we have considered not only the more general aspects of the question respecting the relations of the civil to the military power, but also those special provisions of Statute law relating to the importation of arms which bear upon the subject in hand.

25. With these last we shall first proceed to deal. It is unnecessary to go behind the provisions of the Customs Laws Consolidation Act of 1876. This Act (39 & 40 Victoria, chapter 36) substantially embodies a code which may be called the Customs Code. By Sections 39 to 42 the importation of goods into the United Kingdom is dealt with upon the footing that the country being a Free Trade country the general law is that the importation of all and any goods is permissible subject only to those exceptions which the Statute proceeds to state. It is provided by Section 39 that it shall be lawful to import "any goods which are not by this or any law in force at the time of importation thereof prohibited to be so imported." Subsequent sections deal with the conditions, declarations, &c., affecting dutiable goods. A list accordingly is framed called "A Table of Prohibitions and Restrictions Inwards," and it is provided that the duties on goods which the Commissioners of the Treasury should enumerate shall be paid. Some of the goods in this list as, for instance, books in violation of copyright, or false or counterfeit money, remain under absolute prohibition. Most of the list are dutiable goods.

26. In this part of the code arms are not dealt with. They are, however, a separate subject of Section 43, which is in the following terms :—"The importation of arms, ammunition, gunpowder, or any other goods may be prohibited by Proclamation or Order in Council." Section 138 deals similarly with export and coastwise trade. It was repealed and replaced in almost identical terms by Section 8 of the Customs Act, 1879 (42 & 43 Vic., c. 21). Details need not be given. Suffice it to say that two Proclamations were issued by Your Majesty on the 4th December, 1913, one made under the provisions of Section 43 of the Act of 1876 prohibiting the importation of arms and ammunition into Ireland, and the other made under the provisions of Section 8 of the Act of 1879, prohibiting their being carried coastwise. We understand the validity of the Proclamation under the Act of 1876 has been challenged, and has been judicially affirmed by the King's Bench Division, and is now the subject of a pending appeal in the Court of Appeal in Ireland. The validity of the Proclamation under the Act of 1879 has not been questioned. The effect of the Proclamations is that arms became as from the date thereof, viz., the 4th December, 1913, prohibited goods, and subject to all the provisions of the Customs code relating thereto.

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27. A few of these may be mentioned. By Section 177 if prohibited goods are imported the goods are to be forfeited together with any goods " which shall be found packed with or used in concealing them." By Section 180 provision was made for the case of any ship containing them being brought to by signal made by any vessel " in Her Majesty's service or in the service of the Revenue." A variety of provisions as to search, &c., are made. By Section 186 every person importing any prohibited goods contrary to such prohibition, or who shall knowingly harbour, keep, or conceal them becomes an offender and liable to forfeit either treble the value of the goods or the sum of £100 at the election of the Commissioners of Customs, and " the offender may either be detained or proceeded against by summons." These options it will be observed rest with the Customs Authorities. The fine was increased to £500 in the case of persons to the number of three or more assembling for the purpose of unshipping, running, conveying, or concealing the goods (Customs Act, 1879, Section 10). These are of course the ordinary provisions against smuggling. Once the Proclamations were made, the imported arms became subject to these provisions.

28. It was admitted in argument before us and the admission appears to be correct, that the crucial question to be solved depended upon the construction of Section 202. The importance of this section is that it sets out specifically and fully who are the persons who, when prohibited goods are landed, are invested with powers *inter alia* of seizure. The section applies not only to ships, boats, carriages, and other conveyances, but also to goods liable to forfeiture, and to persons liable to detention for any offences under the Customs Acts, " or any other Act whereby Officers of Customs are authorised to seize or detain persons, goods, or other things." The operative provision of the Statute is in these terms :—That they (that is persons and goods) " shall or may be seized or detained in any place either on land or water by any of the following persons, being duly employed for the prevention of smuggling, that is to say, any Officer of Her Majesty's Army, Navy, Marines, Coastguard, Customs, or Excise, or by any person having authority from the Commissioners of Customs or Inland Revenue to seize or by any Constable or Police Officer of any County, City, or Burgh in the United Kingdom so employed with the sanction of the Magistrates having jurisdiction therein."

29. It was not denied before us that those engaged in the seizure of arms were (1) military and (2) police. It was not contended that the third category, viz., " persons having authority from the Commissioners of Customs or Inland Revenue to seize " had any application to the case under consideration. There was no such authority. But the position of the military and the police has to be specially and separately considered. We are of opinion that in order to render legal the action of either police or military in regard to the seizure or arms landed at Howth contrary to Statute and to Your Majesty's Proclamation it was necessary that the military or police engaged upon or accomplishing the seizure should be " duly employed for the prevention of smuggling." These words appear to us to be governing words which it is impossible to ignore. But with regard to constables or police officers a further condition must also be fulfilled. Not only must the Constable be so employed, *i.e.*, " duly employed for the prevention of smuggling," but this must have been done with the sanction of the magistrates referred to.

We beg to report to Your Majesty that these provisions of the Statute were not complied with, either in the case of the police or of the military. In our opinion accordingly their action on that day in seizing arms was not warranted by law. Neither were " duly employed for the prevention of smuggling," and with regard to the Dublin Metropolitan Police the sanction of the magistrates had not been obtained in terms of the Act to any such employment.

30. It thus appears that the proceedings of the police and military were tainted by fundamental illegality. The police were not acting in the execution of the law, and the proposition that the intervention or acts of the military can be justified on the ground that they were protecting and supporting the police in the execution of the law cannot be maintained. We recognise, however, that in the emergency which had occurred the provisions of the law applicable to the situation might not have occurred to men in Mr. Harrel's position. This confirms our opinion that an enterprise of the kind should not have been undertaken at his own hand without either legal advice or consultation with any representative of the Executive Government.

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31. Before leaving the action of Mr. Harrel we may deal with an argument which was presented by learned Counsel with reference to his position. Although not put forward in that sense, the argument appeared to be in the direction of affirming that the Assistant Commissioner was not by law bound to comply with requests or orders from the Under-Secretary, and that this abated the force of any observation that he had not availed himself of such consultation. If the argument implied that in an emergency clearly beyond the scope of ordinary police duty the Assistaut Commissioner of the Dublin Metropolitan Police was vested by law with any power of acting at his own hand in disobedience to orders from the Executive Government it would be preposterous. It may be observed that in practice the avoidance of friction in cases of civil turmoil is best secured by the careful and united co-operation of all concerned in the maintenance of the King's peace. Those who have to perform the task of actual collision are naturally and properly anxious to consult with and obtain the sanction of the Executive Government, as to the line which is to be taken.

32. There seems to be no exception to these principles in the case of the Dublin Metropolitan Police, as a brief reference to the Statutes will show. By 6 & 7 William 4, chap. 29, it was provided (Section 1) that the Lord Lieutenant should appoint two fit persons as Justices of the Peace for the Police District of Dublin Metropolis. It was provided that these justices should execute the duties of a Justice of the Peace within a certain wide range, "together with such other duties as shall be hereafter specified, or as shall be from time to time directed by the Chief Secretary of the Lord Lieutenant, or in his absence by the Under-Secretary for the time being for the more efficient administration of the Police within the said limits." The two Justices were to be heads of the Dublin Metropolitan Police, doing all ordinary police work, and directly placed under the Chief Secretary, or in his absence the Under-Secretary for the time being with regard to extraorduary work or cases of emergency. The conversion of these two Justices into Officials with other names is narrated in the preamble to the Act of 1859 (22 & 23 Vict., chap. 52). These "justices are in such subsequent Acts denominated Commissioners of Police for the said district," and the object of the 1859 Statute is thus set out:—"Whereas it is expedient that instead of two Commissioners of Police there should be one Commissioner and one Assistant Commissioner of Police for the said district of Dublin Metropolis." Mr. Harrel, as Assistant Commissioner, is not only bound to act according to the general law, but he stands in the specific relation to the Chief Secretary and Under-Secretary which these Statutes set forth. It does not seem to us to be doubtful accordingly that if Mr. Harrel whether after consultation or not had received the orders contained in the minute of the Under-Secretary, which was compiled with the aid of the Lord Chancellor, he would have been bound to obey.

33. We feel, however, that we should not be discharging our duty to Your Majesty did we not deal on broader grounds with the problem arising out of these unfortunate eveuts. We allude to the general question of the calling in of the military in aid of the civil power. It is true that so far as the main and avowed object of the expedition, viz., the seizure of arms was concerned, the action of the police and *a fortiori* of the military, if the views which we have ventured to express be correct, could not be justified on the head that it was taken in the course or support of the execution of the law. In the case both of Mr. Harrel and of General Cuthbert the questionable nature of the transaction never seems to have crossed their minds. They may subconsciously have mixed it up with another kind of military intervention, viz., for aiding the civil power in the dispersion or suppression of unlawful assembly. This was referred to by Mr. Harrel himself. We feel therefore bound to deal with this point.

34. It arises in this way. It is said—"There was a company of 800 men: granted, that they were respectable citizens; granted, that there was no danger of riot, of any kind of breach of the peace, or of destruction of property, or putting the populace or the lieges in terror; still the common bond between them was that they had illegally in their possession contraband rifles, and that they were marching into Dublin to show them off. *Ergo*, this was an unlawful assembly. Once it can be so characterised it becomes an assembly with regard to which it is legitimate and proper for the civil power to invoke military aid."

We lay down the general proposition that it is not an assembly which is unlawful in any and every sense of that term which can justify the calling out of the military forces of the Crown. There are many assemblies which are gathered for illegal purposes. Small knots of men may come together in a public park, say, for the purpose of gambling. It

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would seem absurd to suggest that a police officer should appeal for military assistance to disperse it, or to say—"If you do not disperse I have armed soldiers to assist me in securing my purpose. I will shoot."

Such illustrations might be repeated, and they are only given to show that much danger would be introduced into the ordered regulation of our civil affairs if the words "unlawful assembly" were to be in their widest construction held sufficient to warrant military interposition.

35. In our opinion the military should only, and legally can only, be convened to interfere with, quell, or disperse an unlawful assembly, if that assembly is unlawful in the sense that it has committed or threatens to commit serious and violent crime, as for instance the setting fire to or destruction of buildings or property, the killing, or maiming, or seriously injuring of persons, or if it is resisting or overpowering the King's officers engaged in the execution of the law. In such a case the public peace may demand that such conduct should be stopped, or such depredations or violence be prevented; and if crowds so behave it is a recognised rule of law to which all classes must conform that the stoppage of crime, the breach of the King's peace, and the dispersal of the assembly may be compelled by military aid. It is not necessary that the Riot Act should be read, but it is desirable to do so as a warning to all concerned that in the opinion of the authorities the time has arrived when the crowds must themselves disperse, or be dispersed by force.

36. This rule is in no way in conflict either with the King's Regulations or with the law of the land. When the former are examined, or the exposition of the latter by the highest authorities is studied, this is clearly established. The authorities we refer to, we need not say, include in particular Lord Bowen in his propositions in the Featherstone riot report (Parliamentary Papers, 1893, C. 7234), and the present Lord Chancellor Haldane in his evidence given before the Select Committee of the House of Commons in 1908 (Parliamentary Papers, 1908, H.C. 236), and now embodied in the Manual of Military Law, 1914 Edition, p. 225. The King's Regulations provide (956) that "except in cases of great and sudden emergency (as explained in paragraph 974) an officer will not order out or take out troops for the purpose of aiding in the suppression of riot, the maintenance of the public peace, or the execution of the law; or of assisting the civil power in case of an expected riot, without the requisition in writing," &c., a point to which reference will hereafter be made. The cases of sudden emergency are thus dealt with in section 974. "The statement above given refers to the normal case, in which the military were present in consequence of an application made by the civil authorities, and the occasions when an officer would be justified in taking action without having received such an application are very rare. It is, however, possible for extraordinary cases to arise of immediate and pressing danger—when violent crimes are being or are likely to be committed—which in the opinion of the officer demand his immediate interference." The King's Regulations are substantially embodied in the "Orders for the guidance of the Troops in affording aid to the Civil Power in Ireland" previously referred to.

37. We shall presently deal with the question whether the events or circumstances under review formed a case falling within these rules. But the point to be made clear is that no countenance is given by them to the proposition that the military can be brought in whenever it can be said of a gathering of persons that their object is illicit. The unlawfulness must be something akin to riot, violence, disturbance, and crime, or resistance to the execution of the law, to avert which military aid is sought as a last and imperative resort. It is an assembly which is unlawful in that sense to which, as the language employed shows, the rules alone apply. And the language of the rules is in accord with, and no doubt to some extent taken from, the law as set forth by the high authority of the distinguished judges already mentioned.

38. In the next place we desire to make it clear that even when the limited and extreme class of cases has been reached, there still remains great room for the exercise of a wise, a scrupulously careful, and a forbearing exercise of discretion. We say so for this reason. The authorities set forth in words what must be plain to every dispassionate man with a knowledge of human nature in the average. The appearance of military—men armed with the apparatus for mortal combat—may instead of composing, do much to inflame the passions of a crowd, and instead of quelling riot may do much to disturb the King's peace. But a second consequence, not noted by the authorities, yet unhappily and emphatically

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illustrated by the incidents under examination may be this, that the passions are not confined to one side, but that the forces brought on the scene and thus engaged in an unpopular and risky task may in the heat of the moment yield to impulses and commit indiscretions which lead to lamentable, and it may be, to fatal results, even involving persons who are entirely innocent either of disturbance or of crime.

39. What has just been said gives point to our next general observations on the law and practice with regard to the invocation of military aid to assist the civil power. It is to the effect that such invocation should be a last resort, that is a resort when all ordinary, peaceful, and less provocative means have failed.

40. Finally we desire—the application will soon be noted—to observe that each and all of these considerations should be present not only to the minds of those civil authorities, who make, but also to the minds of the military authorities who answer the call. In this matter—where improper compliance may be at the price of life—it is not sufficient, especially for those in command to say that they are complying with requisitions. They must be satisfied that the issuing authority has the power, they must have the requisition (unless in the extreme emergency cases alluded to) in writing, and they must themselves judge where the disturbance takes place in or near the station where the troops are quartered whether the occasion be sufficient for ordering soldiers on the scene. Where troops are requisitioned from a distance, and the military authorities despatch the troops, the officer commanding must, on arrival, exercise his discretion as to the necessity for intervention. In every case the military authorities must themselves apply to the circumstances those principles above mentioned—which are neither complex nor unfamiliar, and which are at once just and humane.

41. We now proceed to apply this code of law and of practice to the events which are the subject of this Enquiry. After much consideration we have unhappily to record our unanimous opinion that every one of those principles was violated in the course of these occurrences.

42. Sir James Dougherty, Under-Secretary for Ireland, stands free from blame.

43. With regard to Mr. Harrel, while we do not discount his evidence that he had in his mind the notion that the Irish Volunteers on their march constituted an unlawful assembly, which it was legitimate to attempt to disperse by force, we think that his real and true object was the seizure of the contraband rifles. We unhesitatingly accept the evidence of General Cuthbert that "he (Mr. Harrel) considered it to be his duty to try and take these arms, and to do so he asked me for the assistance of the military." We are of opinion as already intimated that the calling in even of the police for this, which was a Customs duty, was not warranted by law. Due employment for the prevention of smuggling would have been required under the Customs Act. There was no such employment; and Your Majesty's Proclamation could not give, and did not purport to give, any greater power than that contained in the Statute. The whole transaction was then, illegal from beginning to end, and the orders of Mr. Harrel were *ultra vires*, and his action of seizure of rifles was not in the due execution of the law. If this be so with regard to the police it is of course *a fortiori* so in regard to the calling in of the military. They were called in to support an illegality by force of arms. So much on the head of the seizure of the rifles, so far as Mr. Harrel is concerned. We shall deal separately with the conduct of General Cuthbert on this head.

44. We are of further opinion that the Volunteers on the road to Dublin were not an assembly which it was either judicious or legal to treat as demanding the employment of the military. The possession of rifles imported as described may possibly have laid the Volunteers open to suitable proceedings taken under the Customs Acts. But their assembly was not characterised by violence, crime, riot, disturbance, or the likelihood of any of these things. The law or the King's Regulations could not be invoked, on the principles already explained, in defence of calling in military assistance, for which in our view neither the occasion nor the circumstances furnished justification. We feel bound to add moreover that the principle of falling back on military aid as a last resort was completely ignored. To call in the soldiers was among the first things thought of. Further, the serious consequences of the employment of the military upon such an errand do not appear to have occurred to or at least impressed Mr. Harrel's mind. In short the position and attitude of the Assistant Commissioner—which we do not further analyse—we find it difficult to

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follow, in view of his local knowledge and long experience. We cannot but conclude, however, that the neglect of those principles and rules of practice which should have been followed was one of the causes of the unfortunate events which ensued.

45. With regret we have to make the same observation with regard to General Cuthbert. We appreciate the position of a military officer called upon suddenly by the civil power to give aid in regard to civil commotion. The civil authority presumably knows, and the officer away from the scene does not know, whether the circumstances warrant troops being called out. This being so, the officer may in most situations accept the word of the magistrate or civil functionary in the initial act of ordering his men out. But the present was not a case of that kind. To begin with, General Cuthbert had no written requisition. Had he had it might have given him pause. Presumably it would have contained a precise intimation of the exact object and a statement that the police had been prevented by combined force or were likely to be so prevented from achieving this object. But General Cuthbert clearly understood what it was that his troops were to be sent out to do. He does not appear to have considered whether it was a case to which the ordinary and familiar principles as to military intervention applied; in fact he knew it was not. As to the order itself, viz., to seize rifles, he would have been well warranted in the absence of any demand by the Customs authorities in refusing to comply with any such requisition. To refuse it was, in our opinion, his duty. We regret that he did not fully consider the position, which on consideration we feel sure that he would have seen in its true light, viz., that an attempt was being made to put soldiers to a duty which the law did not impose, and would not warrant.

46. Before stating our general conclusions, we think it proper to allude to a matter which at one time appeared to have a bearing on the subject of the Enquiry. We do so lest it might be supposed that we had not fully considered the point. We refer to the position and action of Your Majesty's Government. With the reasons of State underlying the issue of Your Majesty's Proclamations we have nothing to do. But upon the other hand if the administration of the law in Ireland or the action of the Executive had been characterised by partiality or discrimination as between localities or classes of Your Majesty's subjects we should not have hesitated to condemn this, not only as wrong in itself, but as provocative of those very hostilities and animosities among and between sections of the population which it should be the object of all proper administration to allay. To take the instance in hand—if through the action of the Executive Government a discrimination had been made under which the seizure of arms had been forbidden in Belfast and ordered in Dublin, or if in the one possession and parade of contraband arms had been allowed, and in the other interdicted and treated as a crime by the Government of the day—we should not have hesitated to connect the unfortunate and mischievous results with this unfortunate and mischievous cause. But we have not before us any evidence which gives countenance to the idea of partial discrimination in the orders or procedure of Your Majesty's Government or Your Majesty's Viceroy. The Customs Statutes applied to all Irish subjects. So did the Proclamations. In their combined effect they fell—as regards the seizure of contraband goods—to be administered by the Customs authorities, and we have not had any suggestion that any partial and discriminating action, was ever taken. The law as it stood was quite sufficient, if correctly administered, for its purpose—the Customs authorities having all the powers of calling in such aid as the particular occasion might demand. But what was not provided for was exactly what no Government or representative of Your Majesty's authority could have been expected to anticipate, namely, that in one portion of Ireland, viz., the City and County of Dublin, the law would be violated as was done, viz., by the calling in both of police and of military without any employment as prescribed by law. We do not doubt, however, that this action provoked in the minds of the population the idea that some discrimination relatively unfavourable to its independence and freedom was being made against the City of Dublin. This was the case. But it was the case not by reason of the Government or of the law, but by individual action taken without the sanction of either. And we may note one singular illustration of how quickly the view of indiscriminate or uneven administration is apprehended and resented. When the order to seize rifles was given eighteen of the police, whose obedience and discipline are notorious, refused to obey, one of their number who was examined before us gave their reason, viz., that the disarming could surely not be legal as it had not been done in Belfast. The eighteen were at once withdrawn from action, and two of them, including the witness referred to, were dismissed on the following evening. We only cite the incident to illustrate how disastrous to contentment and to order it would be if the law were partially or unevenly administered.

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It may be now convenient that we should state in the form of a brief compend, the general conclusions at which we have arrived. They are as follows :—

(1). The employment of the police and the military was not in accordance with law, and in particular was not in compliance with section 202 of the Customs Act of 1876.

(2). Mr. Harrel, Assistant Commissioner of Police, is responsible for calling out the military, as well as for the orders issued to the Dublin Metropolitan Police.

(3). We cannot hold that Sir James Dougherty, Under-Secretary for Ireland, failed in any respect in his duty to the Crown or to the public. As already stated, he stands free of blame.

(4). General Cuthbert should have considered whether the task which his troops were called on to perform, viz., the seizure of arms, was invoked by proper authority, and was in itself a proper one to discharge under the King's regulations, and the law. He did not adequately consider these things, and his compliance with the Assistant Commissioner's call was wrong.

(5). There was no compliance with the specific rule requiring a written requisition.

(6). This is regrettable, because we incline to the opinion that the written order might have induced General Cuthbert more scrupulously to consider the nature of the proposed duty.

(7). In our view—and apart from the fundamental illegality as to the seizure of rifles—there was in the events and circumstances set forth no case warranting military intervention.

(8). Apart from the question of the possession of contraband rifles, with which we have already dealt, the gathering of the Irish Volunteers, and their march towards Dublin, did not constitute an unlawful assembly requiring dispersal by military aid. Their presence or conduct produced no terror to the lieges, and did not in our opinion endanger life or property or the King's peace. The calling in of the military to quell or suppress this gathering as an unlawful assembly was, in our opinion, unjustifiable.

(9). At the scene of conflict near Clontarf the conduct of Mr. Harrel in parleying with the leaders of the crowd, and of Captain Cobden in resolving against firing was prudent and correct.

(10). Between Fairview and Bachelor's Walk the military were subjected to insults and assailed with missiles, but, in our opinion, there was no such great and inevitable danger of serious bodily harm as to justify the use of firearms.

(11). In Bachelor's Walk the command by Major Haig to five or six men to prepare to fire under his order we do not pronounce upon. For we hold it not proved that an actual order to fire was given *or* that any order to fire proceeded from any officers. It is manifest that any general or promiscuous order would have been improper. This Major Haig recognised at the time, and we are satisfied that such an order, viz., for promiscuous firing, would not have been given by him.

(12). In the circumstances which we have set forth it is regrettable that Major Haig was not informed when he joined the forces in Dublin that the rifles were loaded.

(13). The promiscuous firing of rifles by twenty-one soldiers took place without orders; but we think that the troops were under the impression that the order was given either directly or passed from man to man.

In regard to these conclusions we beg to report that they are unanimous. The report is also in all particulars a unanimous report.

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We humbly trust that we may be excused for mentioning another point. We are convinced that many of the victims who suffered by the firing in Bachelor's Walk were innocent of all connection with the unseemly outrageous and provocative action of the crowd, but were passive spectators or ordinary pedestrians. In these cases and indeed in all, the results to those injured and especially to the relatives of those who were shot dead are such as to evoke both deep regret and unfeigned compassion. It is not properly in our province to do more than to commend all these cases to the sympathetic consideration of the Lords of the Treasury.

In conclusion, we have already noted the valuable assistance derived by us from the courtesy and labours of the Bar and of the departments involved. These we again respectfully acknowledge. We desire also to place on record our cordial appreciation of the valuable assistance afforded unremittingly by our Secretary, in the legal investigations which it was our duty to make, in the arrangements connected with our procedure, and in the framing of this Report.

All which we humbly submit and report for Your Majesty's gracious consideration.

(Signed),

SHAW OF DUNFERMLINE.

WILLIAM D. ANDREWS.

T. F. MOLONY.

ALEXANDER SHAW, *Secretary.*

4th September, 1914.

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